



Senate

General Assembly

File No. 359

February Session, 2026

Substitute Senate Bill No. 414

Senate, April 2, 2026

The Committee on Transportation reported through SEN. COHEN of the 12th Dist., Chairperson of the Committee on the part of the Senate, that the substitute bill ought to pass.

**AN ACT CONCERNING VEGETATION MANAGEMENT GUIDELINES
BY THE DEPARTMENT OF TRANSPORTATION.**

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 13b-31h of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) The Department of Transportation shall develop, and thereafter
4 revise as necessary, guidelines governing tree and vegetation
5 management, removal and replacement along state highways for use by
6 its employees and contractors when undertaking maintenance and
7 construction projects. The goal of the guidelines shall be to ensure the
8 impacts of maintenance and construction projects on the environment,
9 landscape and noise pollution are balanced or outweighed by measures
10 taken to avoid and minimize the impacts.

11 (b) Such guidelines shall include, but need not be limited to,
12 provisions addressing (1) the safety of the traveling public; (2) general
13 roadside vegetation management activities performed by the

14 department, including, but not limited to, mowing, herbicide
15 application, grassing, replanting with native species whenever
16 practicable, limb management, tree removal and debris removal; (3)
17 beautification, enhancements and the effect on scenic roads designated
18 pursuant to section 13b-31c; (4) visibility enhancement; and (5) the
19 environmental impact of such work, including (A) preventing invasive
20 tree, brush or plant species' growth and impact, (B) storm water run-off,
21 (C) erosion, (D) replanting of vegetation species to expand and improve
22 pollinator habitats, as described in section 22-90b, and (E) reduced
23 mowing. Such guidelines shall apply to construction projects financed,
24 in whole or in part, with federal funds to the extent such guidelines do
25 not conflict with federal laws and regulations.

26 (c) Such guidelines shall not apply to the removal of any trees or
27 vegetation necessary to maintain public safety or that is performed
28 because of a weather-related civil preparedness emergency declared
29 pursuant to section 28-9.

30 (d) [On or before January 1, 2024] Not later than February 1, 2027, the
31 Commissioner of Transportation shall consider the results of the study
32 and recommendations conducted pursuant to section 63 of public act
33 24-151, as amended by this act, by the Department of Natural Resources
34 and the Environment at The University of Connecticut concerning the
35 carbon sequestration by trees and other vegetation along highways and
36 other areas in the state , and determine the need, if any, for revisions to
37 the guidelines adopted pursuant to subsection (a) of this section. If the
38 commissioner determines a revision to such guidelines is not warranted,
39 the commissioner shall submit a report, in accordance with the
40 provisions of section 11-4a, to the joint standing committees of the
41 General Assembly having cognizance of matters relating to
42 transportation and the environment explaining the reasons for such
43 determination. If the commissioner revises such guidelines in response
44 to the results of such study, the commissioner shall submit such revised
45 guidelines to [the] such joint standing committees, [of the General
46 Assembly having cognizance of matters relating to transportation and
47 the environment,] in accordance with the provisions of section 11-4a.

48 [The] Such joint standing committees shall hold a joint public hearing
 49 on such revised guidelines and the commissioner shall present such
 50 revised guidelines at the public hearing.

51 Sec. 2. Section 63 of public act 24-151 is repealed and the following is
 52 substituted in lieu thereof (*Effective July 1, 2026*):

53 (a) The Department of Transportation shall provide a grant from
 54 available resources to the Department of Natural Resources and the
 55 Environment at The University of Connecticut for the purpose of
 56 studying the carbon sequestration by trees and other vegetation along
 57 highways and other areas in the state.

58 (b) The Department of Natural Resources and the Environment at
 59 The University of Connecticut shall (1) submit an interim report, not
 60 later than January 1, 2025, and a final report, not later than [July 1, 2025]
 61 October 1, 2026, concerning the [department's findings] results of such
 62 study and any recommendations to the Department of Transportation
 63 and the joint standing committees of the General Assembly having
 64 cognizance of matters relating to transportation and the environment,
 65 in accordance with the provisions of section 11-4a of the general statutes,
 66 and (2) present either or both such reports at a hearing held jointly by
 67 said joint standing committees.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026</i>	13b-31h
Sec. 2	<i>July 1, 2026</i>	PA 24-151, Sec. 63

Section 1	<i>October 1, 2026</i>	13b-31h
Sec. 2	<i>July 1, 2026</i>	PA 24-151, Sec. 63

Statement of Legislative Commissioners:

In Section 1(d), "conducted pursuant to section 63 of public act 24-151, as amended by this act" was moved to after "recommendations" and "in response to the results of such study" was inserted in the third sentence for clarity.

TRA *Joint Favorable Subst. -LCO*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact: None

Municipal Impact: None

Explanation

The bill, which has no fiscal impact, requires the Department of Transportation (DOT) to consider whether any revisions are needed to its vegetative management guidelines based on the results of a forthcoming UConn study and to report to the Transportation and Environment Committees, as specified in the bill. It is anticipated that DOT has the expertise to meet the provisions of the bill within existing resources.

The Out Years

State Impact: None

Municipal Impact: None

OLR Bill Analysis**sSB 414*****AN ACT CONCERNING VEGETATION MANAGEMENT GUIDELINES
BY THE DEPARTMENT OF TRANSPORTATION.*****SUMMARY**

This bill delays, from July 1, 2025, to October 1, 2026, the due date for the UConn Department of Natural Resources and the Environment's final report on its study of carbon sequestration by trees and other vegetation along highways and other areas in Connecticut. (Under current law, its interim report was due by January 1, 2025, but, in practice, the department published that report on February 1, 2026.) Along with the final report, the bill also requires the UConn department to submit its study results and any related recommendations to the Department of Transportation (DOT), which is in addition to the Transportation and Environment committees as current law requires.

Relatedly, the bill requires the DOT commissioner, by February 1, 2027, to consider the results of UConn's study and determine whether DOT's vegetation management guidelines need to be accordingly revised. If the commissioner determines that the guidelines do not need to be revised, he must report to the Transportation and Environment committees explaining why. Alternatively, if he revises the guidelines based on UConn's study, he must submit them to these legislative committees and the committees must hold a joint public hearing for the commissioner to present on the revised guidelines.

The bill also makes technical and conforming changes, including deleting obsolete language.

EFFECTIVE DATE: July 1, 2026, except the DOT commissioner and legislative committee requirement provisions are effective October 1, 2026.

BACKGROUND***DOT Vegetation Management Guidelines***

Existing law requires DOT to develop, and revise as necessary, guidelines on tree and vegetation management, removal, and replacement along state highways for its employees and contractors to use for maintenance and construction projects. The guidelines must include certain components and aim to ensure that maintenance and construction projects' impacts on the environment, landscape, and noise pollution are balanced or outweighed by measures taken to avoid and minimize them. The guidelines apply to construction projects financed, wholly or partially, with federal funds to the extent that they do not conflict with federal laws and regulations. They do not apply to tree or vegetation removal that is (1) needed to maintain public safety or (2) due to a weather-related civil preparedness emergency.

COMMITTEE ACTION

Transportation Committee

Joint Favorable

Yea 36 Nay 0 (03/16/2026)